

APPENDIX B – CHAPTER 3033
NOTICE FOR FILING AGENCY PROTESTS
United States Coast Guard Ombudsman Program

It is the policy of the United States Coast Guard (USCG) to issue solicitations and make contract awards in a fair and timely manner. The Ombudsman Program for Agency Protests (OPAP) was established to investigate agency protest issues and resolve them without expensive and time-consuming litigation. OPAP is an independent reviewing authority that is empowered to grant a prevailing protester essentially the same relief as the Government Accountability Office (GAO).

Interested parties are encouraged to seek resolution of their concerns within the USCG as an Alternative Dispute Resolution (ADR) forum rather than filing a protest with the GAO or some external forum. Interested parties may seek resolution of their concerns informally or opt to file a formal agency protest with the Contracting Officer or Ombudsman.

Informal Forum with the Ombudsman. Interested parties who believe a specific USCG procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer. If the Contracting Officer is unable to satisfy their concerns, interested parties are encouraged to contact the U.S. Coast Guard Ombudsman for Agency Protests. Under this informal process the agency is not required to suspend contract award performance. Use of an informal forum does not suspend any time requirement for filing a protest with the agency or other forum. In order to ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman. Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions. If the protester's concerns are unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest to either the Contracting Officer or as an alternative to that, the Ombudsman under the OPAP program.

Contract award or performance will be suspended during the protest period unless contract award or performance is justified, in writing, for urgent and compelling reasons or is determined in writing to be in the best interest of the Government. The agency's goal is to resolve protests in less than 35 calendar days from the date of filing. Protests shall include the information set forth in FAR 33.103(d) (2). If the protester fails to submit the required information, resolution of the protest may be delayed or the protest may be dismissed. To be timely, protests must be filed within the period specified in FAR 33.103(e). Formal protests filed under the OPAP program should be submitted electronically to OPAP@uscg.mil and the Contracting Officer or by hand delivery to the Contracting Officer.

Election of Forum. After an interested party protests a Coast Guard procurement to the Contracting Officer or the Ombudsman, and while the protest is pending, the protester agrees not to file a protest with the GAO or other external forum. If the protest is filed with an external forum, the agency protest will be dismissed.

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SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

1 29

2. CONTRACT NUMBER

70Z08223CCEUM0003

3. SOLICITATION NUMBER

PNUM-23728288

4. TYPE OF SOLICITATION

☐ SEALED BID (IFB) INVITATION FOR BID☒ NEGOTIATED (RFP) REQUEST FOR

5. DATE ISSUED

7/5/2023

6. REQUISITION/PURCHASE NUMBER

51281PR230000158

7. ISSUED BY

CODE 82

CONTRACTING OFFICER

USCG CIVIL ENGINEERING UNIT MIAMI

15608 SW 117TH AVENUE, MIAMI, FLORIDA 33177-1630

8. ADDRESS OFFER TO (If other than item 7)

CONTRACTING OFFICER

USCG CIVIL ENGINEERING UNIT MIAMI

15608 SW 117TH AVENUE, MIAMI, FLORIDA 33177-1630

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and 1

copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if

hand carried, in the depository located in VIA EMAIL : KARINA. GUDIEL 2 @USCG.MIL until 2:00 PM EST local time 8 / 7 / 2 0 23

(Hour)

(Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.10. FOR
INFORMATION
CALL:

A. NAME

Karina Gudiel, Contract Specialist

B. TELEPHONE (NO COLLECT CALLS)

AREA CODE

305

NUMBER

278-6731

EXTENSION

C. EMAIL ADDRESS

Karina.Gudiel2@uscg.mil

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(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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☒	B	SUPPLIES OR SERVICES AND PRICES/COSTS		PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS			
☒	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT		☒	J	LIST OF ATTACHMENTS	
☐	D	PACKAGING AND MARKING		PART IV - REPRESENTATIONS AND INSTRUCTIONS			
☐	E	INSPECTION AND ACCEPTANCE		☒	K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
☒	F	DELIVERIES OR PERFORMANCE		☒	L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	
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☒	H	SPECIAL CONTRACT REQUIREMENTS					

OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within calendar days (60 calendar days unless a different

period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
SPACE METRICS Inc. 600 Maryland Ave. SW, Suite 860E Washington, DC. 20024			Samuel Trotman President/CEO	
15B. TELEPHONE NUMBER	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE 1 (240)	NUMBER 393-2816	EXTENSION	 Digitally signed by Samuel N Trotman DN: cn=US, o=Space Metrics Inc., dnQualifier=A01410000001840A7AA9400 00189AD, cn=Samuel N Trotman Date: 2023.08.08 16:02:48 -04'00'	August 8, 2023

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED ALL ITEMS ON PRICE PROPOSAL FORM AS ACCEPTED	20. AMOUNT \$1,195,513.74	21. ACCOUNTING AND APPROPRIATION 2023 0610000A00232DD G020G015G000 51281CMDCD UCGILC343M 254018 61000000 2100COMPX 23PROJEXEC 000000 000000 000000 000000 0 0 0 0
AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM BLOCK 25
24. ADMINISTERED BY (If other than Item 7) CONTRACTING OFFICER USCG CIVIL ENGINEERING UNIT MIAMI 15608 SW 117TH AVENUE MIAMI, FLORIDA 33177-1630	25. PAYMENT WILL BE MADE BY CONTRACTING OFFICER USCG CIVIL ENGINEERING UNIT MIAMI 15608 SW 117TH AVENUE MIAMI, FLORIDA 33177-1630	28. AWARD DATE 08/10/2023
6. NAME OF CONTRACTING OFFICER (Type or print) Ada M. Hoggard, USCG, Contracting Officer	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

SECTION B - SUPPLIES OR SERVICES AND PRICES
****ALL ITEMS ARE TO BE PRICED SEPARATELY****

CLIN 0001: BASE BID ITEM (A): The Contractor shall provide one (1) Full-Time **Administrative Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL. **(Currently this position has an incumbent.)**

ONE JOB COMPLETE: \$114,432.00

CLIN 0002: BASE BID ITEM (B): The Contractor shall provide one (1) Full-Time **Contracting Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL. **(Currently this position has an incumbent.)**

ONE JOB COMPLETE: \$115,296.00

OPTION ITEMS: Contractors must quote on all items. Failure to do so WILL RESULT in the quote being determined NON-RESPONSIVE

CLIN 0003: OPTION YEAR 1(A): The Contractor shall provide one (1) Full-Time **Administrative Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$116,719.68

CLIN 0004: OPTION YEAR 2(A): The Contractor shall provide one (1) Full-Time **Administrative Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$119,052.01

CLIN 0005: OPTION YEAR 3(A): The Contractor shall provide one (1) Full-Time **Administrative Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$121,443.34

CLIN 0006: OPTION YEAR 4(A): The Contractor shall provide one (1) Full-Time **Administrative Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$123,854.99

CLIN 0007: OPTION YEAR 1(B): The Contractor shall provide one (1) Full-Time **Contracting Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$117,602.88

CLIN 0008: OPTION YEAR 2(B): The Contractor shall provide one (1) Full-Time **Contracting Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$119,957.00

CLIN 0009: OPTION YEAR 3(B): The Contractor shall provide one (1) Full-Time **Contracting Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$122,345.85

CLIN 00010: OPTION YEAR 4(B): The Contractor shall provide one (1) Full-Time **Contracting Assistant** on-site to ensure successful development and execution of office duties, data management and project assignment oversight working in conjunction with CEU Command Staff, Senior Field Contracting Officer, Contracting Officers, Contract Specialist and Procurement Agent/Technician at CEU Miami. He or she will be expected to perform approximately 1920 hours per year at CEU in Miami, FL.

ONE JOB COMPLETE \$124,809.99

TOTAL LUMP SUM BID PRICE: \$1,195,513.74

(SUM of Base Bid plus All Option Years; CLIN00001 through 00010)

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C.1 See Attachment J.1 for Statement of Work

SECTION D - PACKAGING AND MARKING

This Section Is Not Applicable

SECTION E - INSPECTION AND ACCEPTANCE

This Section Is Not Applicable

SECTION F - DELIVERIES OR PERFORMANCE

F.1 THE FOLLOWING FEDERAL ACQUISITION REGULATION CLAUSES ARE INCORPORATED BY REFERENCE:

52.242-15 STOP-WORK ORDER (AUG 1989)

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 INVOICE INSTRUCTIONS

Beginning on August 28, 2023, Multifactor Authentication (MFA) will be required to login to IPP. Multi-factor authentication strengthens account security by requiring two factors to confirm user identity. IPP will send an email (from info@IPP.Fiscal.Treasury.gov) to all vendors, known as collectors in IPP, regarding changes to the IPP log in and user enrollment process.

You will submit proper invoices associated with this award through the Invoice Processing Platform (IPP) at <https://www.ipp.gov/>. IPP is a secure web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service in partnership with the Federal Reserve Bank of St. Louis (FRSTL). IPP is available at no cost to any commercial vendor or independent contractor doing business with a participating government agency.

Actions to take:

If you are already enrolled in IPP: If your company is already registered to use IPP, you will not be required to re-register and you do not need to contact IPP. If you are NOT already enrolled in IPP: The point of contact you provided in your SAM.gov registration will receive two emails from ipp.noreply@mail.ero.c.twai.gov. Please note that emails from this email address may filter into your spam or junk folder:

- The first email will have the IPP Logon ID and a link to the IPP application.
- A second email, which will be sent within 24 hours of the first email, contains a temporary password.

Once your contact receives these emails, please ensure they log into IPP and complete the registration process. Once registered to use IPP, your company may submit invoices electronically, receive e-mail notifications when requests are paid, view payment history, and access remittance downloads. The e-mail notification of payment is sent when a payment is distributed to your bank account and may include the following payment information: Date of payment, dollar amount, invoice number, paying agency, payee name, and ACH trace number.

Vendor training materials, including a first time login tutorial, are available on the <https://www.ipp.gov/> website. Once you have logged in to the IPP application, you will have access to user guides that provide step- by-step instructions for all IPP capabilities, ranging from creating and submitting an invoice to setting up email notifications. Live webinars

are held monthly and provide a great opportunity to learn the basic of the system and to call in and ask the IPP team questions about the IPP application.

IPP Customer Support is available to assist users of the system and can answer your questions related to accessing IPP or completing the registration process.

- Toll-free number: 866-973-3131
- Email address: IPPCustomerSupport@fiscal.treasury.gov
- Hours of operation: Monday through Friday (excluding bank holidays) from 8:00 am - 6:00 pm ET

G.2 INVOICE

- (a) To be accomplished on the form provided by the Coast Guard.
- (b) In addition to the items required for a proper invoice under FAR 52.232-5 and 52.232-27, the invoice must also include the following information:
 - 1. Invoice Routing Code (IRC): CEU-MIAM
 - 2. Name of the Contracting Officer's Representative (COR)
 - 3. Indication that the contractor represents a small business for accelerated payment purposes.
- (c) To facilitate the approval and processing of an invoice, contractor shall furnish an advance copy of the invoice to the Contracting Officer's Representative for review of the invoice amount and estimates of work accomplished prior to submission to the billing office and copy to the Contract Specialist.
- (d) Unique Entity Identifier (VEI) The UEI (SAM) is assigned automatically to all active and inactive SAM.gov registered entities. This information is displayed on SAM.gov. If your entity is not registered, but you still need a Unique Entity ID (SAM) (e.g., for subcontractors or sub awardees), go to SAM.gov and select Get Started. If you wish to register your entity, you can get a Unique Entity ID (SAM) as part of your registration. You should also go to SAM.gov and select Get Started.

The Unique Entity Identifier must be on all invoices to avoid processing delays. We recommend using the project the specific project number with your invoice number for all invoice submission. An example of the unique invoice number for would be: 23728288-I (project number-invoice number)

G.3 GOVERNMENT REPRESENTATIVES

The Government may, upon contract award or thereafter, name representatives with titles such as Project Engineer, Contracting Officer's Technical Representative(s), Inspector(s), and so on. Such individuals will be named in writing by the Contracting Officer, with individual responsibilities set forth at that time.

In any event, no such named individual has the authority to issue any direction under this contract either technical or otherwise, which constitutes a change to the terms, conditions, and price or delivery schedule of the contract. Only the Contracting Officer is authorized to alter the contract in any manner.

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1. ONSITE WORK HOURS

Work accomplished onsite shall be performed within the core working hours of 8:00 A.M. to 5:00 P.M., Monday through Friday. Additionally, the office is closed on Federal Holidays.
(see http://www.opm.gov/Operating_Status_Schedules/fedhol/Index.asp)

H.2 OFF-SITE CAPABILITY

Telework may be authorized when hazardous weather, building closures, or any other event that prevents the primary place of performance from becoming workable, and situational purposes for government convenience.

However, telework is not authorized for routine purposes. A Coast Guard laptop will be required and provided on a case-by-case basis for situational purposes.

The contractor is solely responsible for ancillary costs such as internet access, secure off-site locations, and all overhead that may be required for off-site work.

H.3 REQUIRED INSURANCE

The contractor shall procure and maintain insurance during the entire period of performance under this contract, in accordance with Federal Acquisition Regulation Clause 52.228-5, INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997) (See Section I). FAR 28.307-2 states the following minimum amounts of liability:

MINIMUM COVERAGE REQUIRED

- 1) Workers' Compensation and Employer's Liability - at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.
- 2) General Liability. - bodily injury liability insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.
- 3) Automobile Liability. - automobile liability insurance written on the comprehensive form of policy of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage.

As evidence that the specified insurance has been obtained, the contractor shall furnish the contracting officer with a certificate of insurance. Such certificate shall be furnished prior to commencement of work and shall provide for thirty (30) calendar days written notice to the Contracting Officer.

PART II – CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if it was given in full text. Upon request, the Contracting Officer will make full text available. Also, the full text of a clause may be assessed electronically at this/these address(es): <http://www.arnet.gov/far/>

I.2 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.202-1	DEFINITIONS (JUN 2020)
52.203-3	GRATUITIES (APR 1984)
52.203-5	COVENANT AGAINST CONTINGENT FEES (MAY 2014)
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020)
52.203-7	ANTI-KICKBACK PROCEDURES (JUN 2020)
52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020)
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS & REQUIREMENTS TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (JUN 2020)
52.204-4	PRINTED OR COPIED DOUBLE-SIDED ON POSTCONSUMER FIBER CONTENT PAPER (MAY 2011)
52.204-7	SYSTEMS FOR AWARD MANAGEMENT (OCT 2018)
52.204-9	PERSONNEL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020)
52.204-13	SYSTEMS FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS (OCT 2016)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (NOV 2021)
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
52.215.2	AUDIT AND RECORDS-NEGOTIATION (JUN 2020)
52.215-8	ORDER OF PRECEDENCE-UNIFORM CONTRACT FORMAT (OCT 1997)
52.215-21	REQUIREMENTS FOR COST OR PRICING DATA OR INFORMATION OTHER THAN COST OR PRICING DATA-MODIFICATIONS (JUN 2020)
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (NOV 2020)
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (OCT 2022)
52.219-14	LIMITATIONS ON SUBCONTRACTING (OCT 2022)
52.219-28	POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (OCT 2022)
52.222-3	CONVICT LABOR (JUN 2003)
52.222-4	CONTRACT WORK HOURS AND SAFETY STANDARDS ACT-OVERTIME COMPENSATION (MAR 2018)
52.222-21	PROHIBITION OF SEGREGATED FACILITIES (APR 2015)
52.222-26	EQUAL OPPORTUNITY (SEP 2016)
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)
52.222-37	EMPLOYMENT REPORTS ON VETERANS (JUN 2020)
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)
52.222-41	SERVICE CONTRACT LABOR STANDARDS (AUG 2018)

52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT ACT-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (AUG 2018)
52.222-50	COMBATING TRAFFICKING IN PERSONS (NOV 2021)
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (MAY 2022)
52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION (MAY 2011)
52.223-6	DRUG-FREE WORKPLACE (MAY 2001)
52.223-18	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (JUN 2020)
52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2021)
52.227-1	AUTHORIZATION AND CONSENT (JUN 2020)
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020)
52.227-14	RIGHTS IN DATA-GENERAL (MAY 2014)
52.228-5	INSURANCE -WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
52.229-4	FEDERAL, STATE AND LOCAL TAXES (STATE AND LOCAL ADJUSTMENTS) (FEB 2013)
52.232-1	PAYMENTS (APR 1984)
52.232-8	DISCOUNTS FOR PROMPT PAYMENT (FEB 2002)
52.232-11	EXTRAS (APR 1984)
52.232-17	INTEREST (MAY 2014)
52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014)
52.232-25	PROMPT PAYMENT (JAN 2017)
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER – SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.233-1	DISPUTES (MAY 2014)
52.233-3	PROTEST AFTER AWARD (AUG 1996)
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT AND VEGETATION (APR 1984)
52.237-3	CONTINUITY OF SERVICES (JAN 1991)
52.242-13	BANKRUPTCY (JUL 1995)
52.243-1	CHANGES-FIXED PRICE (AUG 1987)
52.244-6	SUBCONTRACTS FOR COMMERCIAL ITEMS (JUN 2023)
52.245-9	USES AND CHARGES (APR 2012)
52.246-25	LIMITATION OF LIABILITY-SERVICES (FEB 1997)
52.249-4	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (SERVICES) (APR 1984)
52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984)
52.253-1	COMPUTER GENERATED FORMS (JAN 1991)

I.3 DEPARTMENT OF HOMELAND SECURITY REGULATION (HSAR) (48 CFR CHAPTER 30) CLAUSES

3052.205-70	ADVERTISEMENTS, PUBLICIZING AWARDS, AND RELEASES (SEP 2012)
3052.211-70	INDEX FOR SPECIFICATIONS (DEC 2003)
3052.222-70	STRIKES OR PICKETING AFFECTING TIMELY COMPLETION OF THE CONTRACT WORK (DEC 2003)
3052-222-71	STRIKES OR PICKETING AFFECTING ACCESS TO A DHS FACILITY (DEC 2003)
3052.222-90	LOCAL HIRE (USCG) (JUN 2006)
3052.223-90	ACCIDENT AND FIRE REPORTING (DEC 2003)
3052.228-70	INSURANCE (DEC 2003)
3052.242-72	CONTRACTING OFFICER'S TECHNICAL REPRESENTATIVE (DEC 2003)

I.4 IN ADDITION TO THE ABOVE CLAUSES INCORPORATED BY REFERENCE, THE FOLLOWING CLAUSES ARE APPLICABLE TO THE SOLICITATION AND RESULTING CONTRACT:

52.204-1	APPROVAL OF CONTRACT (DEC 1989)
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This contract is subject to the written approval of Senior Field Contracting Officer, Civil Engineering Unit Miami and shall not be binding until so approved.

(End of Clause)

52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS
(OCT 2018)

- (a) The Contractor shall update the information in the Federal Awardee Performance and Integrity Information System (FAPIS) on a semi-annual basis, throughout the life of the contract, by posting the required information in the System for Award Management via <https://www.sam.gov>.
- (b) As required by section 3010 of the Supplemental Appropriations Act, 2010 (Pub. L. 111-212), all information posted in FAPIS on or after April 15, 2011, except past performance reviews, will be publicly available. FAPIS consist of two segments—
 - (1) The non-public segment, into which Government officials and the Contractor post information, which can only be viewed by—
 - (i) Government personnel and authorized users performing business on behalf of the Government; or
 - (ii) The Contractor, when viewing data on itself; and
 - (2) The publicly-available segment, to which all data in the non-public segment of FAPIS is automatically transferred after a waiting period of 14 calendar days, except for—
 - (i) Past performance reviews required by subpart 42.15;
 - (ii) Information that was entered prior to April 15, 2011; or
 - (iii) Information that is withdrawn during the 14-calendar-day waiting period by the Government official who posted it in accordance with paragraph (c)(1) of this clause.
- (c) The Contractor will receive notification when the Government posts new information to the Contractor's record.
 - (1) If the Contractor asserts in writing within 7 calendar days, to the Government official who posted the information, that some of the information posted to the non-public segment of FAPIS is covered by a disclosure exemption under the Freedom of Information Act, the Government official who posted the information must within 7 calendar days remove the posting from FAPIS and resolve the issue in accordance with agency Freedom of Information procedures, prior to reposting the releasable information. The contractor must cite 52.209-9 and request removal within 7 calendar days of the posting to FAPIS.
 - (2) The Contractor will also have an opportunity to post comments regarding information that has been posted by the Government. The comments will be retained as long as the associated information is retained, i.e., for a total period of 6 years. Contractor comments will remain a part of the record unless the Contractor revises them.
 - (3) As required by section 3010 of Pub. L. 111-212, all information posted in FAPIS on or after April 15, 2011, except past performance reviews, will be publicly available.
- (d) Public requests for system information posted prior to April 15, 2011, will be handled under Freedom of Information Act procedures, including, where appropriate, procedures promulgated under E.O. 12600

(End of clause)

52.216-18 ORDERING (OCT 1995)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from award through 1 year after contract award or during any option period exercised.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) If mailed, a delivery order or task order is considered "issued" when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$2,500, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor—
 - (1) Any order for a single item in excess of \$10,000;
 - (2) Any order for a combination of items in excess of \$10,000; or
 - (3) A series of orders from the same ordering office within five (5) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (a) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (b) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within three (3) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY (OCT 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering
- (c) clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
- (d) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (e) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after 60 months from award.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within 10 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60months.

(End of clause)

52.219-71 SECTION 8(a) DIRECT AWARD (DEVIATION) (APR 2010)

- (a) This contract is issued as a direct award between the contracting activity and the 8(a) contractor pursuant to a Partnership Agreement between the Small Business Administration (SBA) and the Department of Commerce (DOC). Accordingly, the SBA, even if not identified in Section A of this contract, is the prime contractor and retains responsibility for 8(a) certification, 8(a) eligibility determinations and related issues, and providing counseling and assistance to the 8(a) contractor under the 8(a) program. The cognizant SBA district office is: Washington Metropolitan District Office, 409 Third St, SW - 2nd Floor | Washington, DC 20416, 202-205-8800.
- (b) The contracting activity is responsible for administering the contract and taking any action on behalf of the Government under the terms and conditions of the contract. However, the contracting activity shall give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the contract. The contracting activity shall also coordinate with SBA prior to processing any novation agreement. The contracting activity may assign contract administration functions to a contract administration office.
- (c) The 8(a) contractor agrees:
 - (1) To notify the Contracting Officer, simultaneously with its notification to SBA (as required by SBA's 8(a) regulations), when the owner or owners upon whom 8(a) eligibility is based plan to relinquish ownership or control of the concern. Consistent with 15 U.S.C. 637(a)(21), transfer of ownership or control shall result in termination of the contract for convenience, unless SBA waives the requirement prior to the actual relinquishing of ownership or control; and
 - (2) To adhere to the requirements of FAR 52.2, Limitations on Subcontracting.

(End of Clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

***This Statement is for Information Only:
It is not a Wage Determination***

Employee Class	Monetary Wage— Fringe Benefits

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (APR 1984)

The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the clause.

- (a) The use in this solicitation or contract of any Homeland Security Regulation (48 CFR Chapter 30) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of clause)

3052.204-71 Contractor Employee Access (SEP 2012)

- (a) *Sensitive Information*, as used in this clause, means any information, which if lost, misused, disclosed, or, without authorization is accessed, or modified, could adversely affect the national or homeland security interest, the conduct of Federal programs, or the privacy to which individuals are entitled under section 552a of title 5, United States Code (the Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or an Act of Congress to be kept secret in the interest of national defense, homeland security or foreign policy. This definition includes the following categories of information:
 - (1) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (Title II, Subtitle B, of the Homeland Security Act, Pub. L. 107-296, 196 Stat. 2135), as amended, the implementing regulations thereto (Title 6, Code of Federal Regulations, part 29) as amended, the applicable PCII Procedures Manual, as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the PCII Program Manager or his/her designee);
 - (2) Sensitive Security Information (SSI), as defined in Title 49, Code of Federal Regulations, part 1520, as amended, “Policies and Procedures of Safeguarding and Control of SSI,” as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or his/her designee);
 - (3) Information designated as “For Official Use Only,” which is unclassified information of a sensitive nature and the unauthorized disclosure of which could adversely impact a person's privacy or welfare, the conduct of Federal programs, or other programs or operations essential to the national or homeland security interest; and
 - (4) Any information that is designated “sensitive” or subject to other controls, safeguards or protections in accordance with subsequently adopted homeland security information handling procedures.
- (b) “Information Technology Resources” include, but are not limited to, computer equipment, networking equipment, telecommunications equipment, cabling, network drives, computer drives, network software, computer software, software programs, intranet sites, and internet sites.
- (c) Contractor employees working on this contract must complete such forms as may be necessary for security or other reasons, including the conduct of background investigations to determine suitability. Completed forms shall be submitted as directed by the Contracting Officer. Upon the Contracting Officer's request, the Contractor's employees shall be fingerprinted, or subject to other investigations as required. All Contractor employees requiring recurring access to Government facilities or access to sensitive information or IT resources are required to have a favorably adjudicated background investigation prior to commencing work on this contract unless this requirement is waived under Departmental procedures.
- (d) The Contracting Officer may require the Contractor to prohibit individuals from working on the contract if the Government deems their initial or continued employment contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns.
- (e) Work under this contract may involve access to sensitive information. Therefore, the Contractor shall not

disclose, orally or in writing, any sensitive information to any person unless authorized in writing by the Contracting Officer. For those Contractor employees authorized access to sensitive information, the Contractor shall ensure that these persons receive training concerning the protection and disclosure of sensitive information both during and after contract performance.

- (f) The Contractor shall include the substance of this clause in all subcontracts at any tier where the subcontractor may have access to Government facilities, sensitive information, or resources.

(End of clause)

Alternate I (SEP 2012) When the contract will require Contractor employees to have access to Information Technology (IT) resources, add the following paragraphs:

- (g) Before receiving access to IT resources under this contract the individual must receive a security briefing, which the Contracting Officer's Representative (COR) will arrange and complete any nondisclosure agreement furnished by DHS.
- (h) The Contractor shall have access only to those areas of DHS information technology resources explicitly stated in this contract or approved by the COR in writing as necessary for performance of the work under this contract. Any attempts by Contractor personnel to gain access to any information technology resources not expressly authorized by the statement of work, other terms and conditions in this contract, or as approved in writing by the COR, is strictly prohibited. In the event of violation of this provision, DHS will take appropriate actions with regard to the contract and the individual(s) involved.
- (i) Contractor access to DHS networks from a remote location is a temporary privilege for mutual convenience while the Contractor performs business for the DHS Component. It is not a right, a guarantee of access, a condition of the contract, or Government Furnished Equipment (GFE).
- (j) Contractor access will be terminated for unauthorized use. The Contractor agrees to hold and save DHS harmless from any unauthorized use and agrees not to request additional time or money under the contract for any delays resulting from unauthorized use or access.
- (k) Non-U.S. citizens shall not be authorized to access or assist in the development, operation, management or maintenance of Department IT systems under the contract, unless a waiver has been granted by the Head of the Component or designee, with the concurrence of both the Department's Chief Security Officer (CSO) and the Chief Information Officer (CIO) or their designees. Within DHS Headquarters, the waiver may be granted only with the approval of both the CSO and the CIO or their designees. In order for a waiver to be granted:
 - (1) There must be a compelling reason for using this individual as opposed to a U.S. citizen; and
 - (2) The waiver must be in the best interest of the Government.
- (l) Contractors shall identify in their proposals the names and citizenship of all non-U.S. citizens proposed to work under the contract. Any additions or deletions of non-U.S. citizens after contract award shall also be reported to the Contracting Officer.

(End of clause)

3052.209-73 LIMITATION OF FUTURE CONTRACTING (JUN 2006)

- (a) The Contracting Officer has determined that this acquisition may give rise to a potential organizational conflict of interest. Accordingly, the attention of prospective offerors is invited to FAR Subpart 9.5 --Organizational Conflicts of Interest.
- (b) The nature of this conflict is potentially working on CAD drawings for future solicitations that may give the contractor an unfair competitive advantage on directly related follow on construction or service contracts.
- (c) The restrictions upon future contracting are as follows:
 - (1) If the Contractor, under the terms of this contract, or through the performance of tasks pursuant to

this contract, is required to develop specifications or statements of work that are to be incorporated into a solicitation, the Contractor shall be ineligible to perform the work described in that solicitation as a prime or first-tier subcontractor under an ensuing DHS contract. This restriction shall remain in effect for a reasonable time, as agreed to by the Contracting Officer and the Contractor, sufficient to avoid unfair competitive advantage or potential bias (this time shall in no case be less than the duration of the initial production contract). DHS shall not unilaterally require the Contractor to prepare such specifications or statements of work under this contract.

- (2) To the extent that the work under this contract requires access to proprietary, business confidential, or financial data of other companies, and as long as these data remain proprietary or confidential, the Contractor shall protect these data from unauthorized use and disclosure and agrees not to use them to compete with those other companies.

(End of clause)

PART III – LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J – LIST OF ATTACHMENTS

<u>ATTACHMENTS</u>	<u>TITLE</u>	<u>DATE</u>	<u>PAGES</u>
J.1	SCOPE OF SERVICE ADMINISTRATIVE ASSISTANT CIVIL ENGINEERING UNIT MIAMI, REGIONAL EXECUTION BRANCH	JUNE 2023	4
J.2	SCOPE OF SERVICE CONTRACTING ASSISTANT CIVIL ENGINEERING UNIT MIAMI, CONTRACTING BRANCH	JUNE 2023	4
